

REALITY★CHECK

Did new law shut down Pierce County license-plate readers? Here's what we know

By **Shea Johnson**

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Governor Bob Ferguson signed SB 6002 to regulate license plate readers in Washington. The law limits data retention and bans cameras near sensitive locations. By TVW

Key Takeaways

The Pierce County Sheriff's Office recently [deactivated more than 250 license-plate readers](#), declaring that a new state law made it legally risky, at least right now, to maintain the technology equipped in all of its patrol vehicles.

When a conservative radio show host, in response, described the new law on X as "forcing municipalities to shut down" their license-plate readers, Democratic Rep. Mari Leavitt replied that [the Driver Privacy Act did no such thing](#): "It absolutely allows cameras (flock and other companies) to operate and just adds some guardrails on how they are operated while on," Leavitt wrote.

"If jurisdictions choose to shut those down, the bill with language as passed, is not the rational reason," Leavitt added.

[Senate Bill 6002](#), which Gov. Bob Ferguson signed into law on March 30, does allow the continued use of [automated license-plate readers](#) (ALPR). But a provision has led law enforcement agencies to suspend the use of their readers built into dashboard cameras, which under the bipartisan legislation are treated no differently than stationary ALPRs affixed to poles.

ALPRs automatically photograph and log vehicle license plates and other vehicle information and alert law enforcement of any match for criminal suspects, missing people or wanted vehicles. Civil liberties advocates have [raised concerns about the technology's mass surveillance](#) and potential misuse.

Decisions to turn off the mobile readers were made with the intention to turn them back on when, or if, it's figured out how their use can comply with the new law, according to the Sheriff's Office and Tacoma Police Department, which also deactivated its ALPRs on the day that SB 6002 was signed.

State Sen. Yasmin Trudeau, D-Tacoma, who introduced the Driver Privacy Act, said in an interview that it was "the right move" for jurisdictions to pause to ensure compliance, and she commended those that did.

“I’m not going to apologize for this bill forcing that pause,” Trudeau said.

The Sheriff’s Office asserted that the law’s restriction of ALPRs near certain locations — including schools, churches and health care or immigration facilities — doesn’t currently work for its dashboard-mounted readers. Without the technology or operational capability to reliably differentiate between restricted and permitted locations in real time, the office had said, continuing to use the system would put deputies at risk of unintentionally violating the law.

Tacoma and Puyallup police departments confirmed they, too, deactivated their mobile ALPRs. Puyallup is also [contemplating whether to renew its recently expired contract](#) for its pole-mounted license-plate readers in the wake of the new legislation and amid an ongoing national debate about the implications of ALPRs, The News Tribune previously reported. Neither Tacoma nor Pierce County deploy stationary readers, popularized by Flock Safety.

After his agency turned off its license-plate readers, Sheriff Keith Swank warned on X that the Driver Privacy Act would hamper the office.

“I’m all for privacy, but I am also for solving crimes and finding missing loved ones,” Swank said. “It’s a balancing act, and PCSO was doing that.”

Swank had “participated in several conversations” conveying his concerns, Sheriff’s Office spokesperson Carly Cappetto said, when asked if the agency previously raised issues with lawmakers or sought to clarify the bill’s effect on dashboard cameras.

Trudeau said that neither the Sheriff’s Office nor Axon, the maker of the agency’s license-plate readers, reached out to her to express concerns during the legislative session. She said she hadn’t even known the Sheriff’s Office had ALPRs.

Two law enforcement groups that she worked with during the session didn't bring up any issues with mobile ALPRs, Trudeau said. Seattle was the only jurisdiction that engaged her on the topic, and she said the city decided to turn off its mobile readers until it determined how to align with the act.

"In the best light, I think it's positive that any jurisdiction, including the Pierce County Sheriff's Office, takes a deep breath, looks the public in the eye and has a plan that comports with the law," Trudeau said.

Messages left with Axon were not returned. [In a statement to KUOW](#), the company said that law enforcement agencies are responsible for configuring their systems, but Axon is committed to ensuring its technology aligns with all laws and supporting agencies as they work to be compliant.

Future of ALPRs for local agencies

The Driver Privacy Act was co-sponsored by Sen. Jeff Holy, R-Cheney, and had support from about half of Senate Republicans, according to the vote's roll call. It was modeled after legislation in other states that also didn't differentiate between stationary and mobile readers, Trudeau said.

Violators face prosecution for a gross misdemeanor if they willfully and intentionally break the law, but Trudeau suggested the intention was not to target accidental data captures or agencies otherwise trying to comply with the law.

Trudeau sought to be clear that she didn't endorse ALPRs, citing personal privacy and other concerns. But if jurisdictions want them, and constituents support that, Trudeau said those jurisdictions should not be restricted from deploying cameras in accordance with state regulations.

In Pierce County, the two largest law enforcement agencies are exploring what that path forward looks like.

“We are working with Axon and have had several multi-agency meetings in the state to address the new regulations,” Cappetto said in an email. “Axon engineers will continue working on developing a solution for the future. There is no timeline for this fix.”

The Tacoma Police Department’s future with ALPRs was uncertain after turning off more than 260 active dashboard readers, according to spokesperson Shelby Boyd, who declined to discuss TPD’s opinion of the law because she said the department didn’t take positions on legislation.

“We are assessing whether and how our mobile ALPRs could be re-deployed in the future in a manner which conforms to the law, and what failsafe systems would be needed/are available to ensure that ALPR data is not collected in restricted areas,” Boyd said in an email.

TPD began using its license-plate readers in February 2025, according to Boyd. The Sheriff’s Office started [using theirs in early 2024](#), The Seattle Times reported.

The Sheriff’s Office said it currently has a \$13 million contract with Axon, which also supplies its body-worn cameras, but Cappetto didn’t respond to follow-up questions seeking clarification on the contract’s length or how it divided dashboard and body cameras. TPD said it couldn’t immediately provide contract details on Thursday.

In addition to location restrictions, the Driver Privacy Act prohibits agencies from using ALPRs for immigration enforcement and tracking protests or other First Amendment-protected activity. It also limits the retention of collected data to 21 days, with some exceptions, among other regulations.

[Flock Safety says the law](#) “allows agencies to continue using ALPR for critical investigations under defined guardrails,” in a post on its website about how the company is implementing safeguards to support compliance of “one of the strictest statewide ALPR frameworks in the country.”

The city of Stanwood in Snohomish County, about 50 miles north of Seattle, announced it [decided to reactivate its Flock Safety system](#) after pausing to comply with the new law.

Ultimately, Trudeau is pleased that the law sparked conversations about the technology, because she said communities need to know where it's deployed — and even just that it exists.

“It is good,” she said, “that we are talking about the fact that there are ALPR cameras.”

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